

24STCV10832 24STCV10832

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Hearing date: 2026-09-10
Motion: DEFENDANT YAIR BEN MOSHE'S MOTION TO STRIKE AND/OR TAX COSTS
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Case Number: 24STCV10832 Hearing Date: September 10, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

TRYON
STREET ACQUISITION TRUST I, a Delaware Statutory Trust,

Plaintiff,

vs.

YAIR BEN MOSHE, an individual; PROVIDENT TITLE COMPANY, a
California corporation; REPOSITION LA VETA, LLC, a California limited
liability company; and DOES 1 through 25, inclusive,

Defendants.

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CASE NO.: 24STCV10832

[TENTATIVE] ORDER RE:

DEFENDANT YAIR BEN MOSHE'S MOTION TO STRIKE
AND/OR TAX COSTS

Dept. 733

8:30 a.m.

September 10, 2026

I.

INTRODUCTION

This action seeks
the determination of the parties' competing rights, interests, priorities
and/or obligations in conjoined parcels of real property that are located at
1303-1305 Laveta Terrace, Los Angeles, California 90026 (the
"Property").

On April 30, 2024,
Plaintiff Tyron Street Acquisition Trust I ("Tryon") filed a complaint against
Defendants Yair Ben Moshe ("Moshe"), Provident Title Company ("Provident") and
Reposition Laveta, LLC ("Reposition"), alleging causes of action for (1) Equitable
Subrogation, (2) Injunctive Relief to Enjoin Foreclosure and a Trustee's Sale,
(3) Quiet Title to a Mortgage Lien on Real Property, and (4) Declaratory

Relief.

The complaint

alleges as follows. Churchill Funding I LLC ("Churchill") originated a \$2,793,750.00 mortgage loan ("the Mortgage Loan") to Defendant Reposition on March 2, 2023. (Compl., ¶ 7.) The Loan terms are memorialized in a Loan Security Agreement (the "Loan Agreement") and a Secured Note (the "Note"). (Id. ¶ 7, Exs. 1, 2.) The Note is secured by a Deed of Trust, Assignment of Leases and Rents, Fixture Filing and Security Agreement that was recorded as a lien on the property. (Id. ¶ 8.) Tryon then purchased and acquired the Mortgage Loan on January 26, 2024, wherein Churchill conveyed and assigned to Tryon all beneficial interest it had under the Deed of Trust (the "Assignment"). (Id. ¶ 3.)

The purpose of the

Loan was to refinance and pay off the full balances that Reposition owed on a pre-existing mortgage that encumbered the Property: (a) a loan in the principal amount of \$1,800,000 that was secured by a first position Deed of Trust recorded in the Official Records of Los Angeles County on or about October 10, 2019 as Instrument Number 20191076585 in favor of beneficiary Maxim Commercial Capital (the "First Deed of Trust"); (b) a second loan in the principal amount of \$1,725,000 that was secured by a second position Deed of Trust recorded in the Official Records of Los Angeles County on or about June 10, 2021 as Instrument Number 20210921988 in favor of beneficiary Easy Financial LLC (the "Second Deed of Trust"); and (c) a third loan in the principal amount of \$862,500 that was secured by a third position Deed of Trust recorded in the Official Records of Los Angeles County on or about June 10, 2021 as Instrument Number 20210921890, also in favor of beneficiary Easy Financial LLC (the "Third Deed of Trust"). (Compl., ¶ 9.)

As part of the

Loan Agreement, Reposition represented that (a) the Tyron Street Deed of Trust would be a first position lien and security interest against the Property, (b) Reposition's only other security agreements or interests in the property were the First Deed of Trust, Second Deed of Trust and Third Deed of Trust, the underlying debts of which would be paid off in full with the funds from the Loan, relinquishing them from the Property, (c) Reposition had not entered into or granted other security agreements affecting the Property that would be ""prior or that may in any way be superior to [Tyron Street's] security interests and rights in and to the [Property]." (Compl., ¶ 10.) Thus, Tyron

claims it expected that the funds Reposition acquired from the Loan would be used to pay off the First Deed of Trust, Second Deed of Trust and Third Deed of Trust, ensuring that Tyron's Deed of Trust would constitute a first priority position lien on the Property. (Id. ¶ 11.) According to the complaint, the Loan funds were disbursed through escrow to pay off the balance of the loan that was secured by the First Deed of Trust, Second Deed of Trust and Third Deed of Trust. (Id. ¶ 18.)

However, Tyron alleges that Reposition had actually taken out another loan on the Property in the amount of about \$800,000.00 from Moshe on August 11, 2022, which was secured by a then fourth priority position Deed of Trust that was recorded in the Official Records of Los Angeles County as Instrument Number 20220953117 (the "YBM Deed of Trust"). (Compl., ¶ 13, Ex. 6.)

According to the complaint, Reposition has defaulted on its Loan obligations to both Tyron and Moshe.

On August 9, 2024, Moshe filed a cross-complaint against Tyron and California TD Specialists ("TD"), alleging causes of action for (1) Injunctive Relief to Enjoin Foreclosure and a Trustee's Sale, and (2) Declaratory Relief.

On June 24, 2025, Moshe dismissed the cross-complaint.

On September 4, 2025, the Court granted Tyron's motion for summary adjudication and denied Moshe's motion for summary adjudication. Judgment was entered on December 2, 2205.

On December 19, 2025, Tyron filed a Memorandum of Costs.

On December 29, 2025, Moshe filed the instant motion to tax costs.

No opposition was filed.

II.

LEGAL STANDARD

Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. (Code Civ. Proc., § 1032(b).) Under Code of Civil Procedure section 1033.5(c)(2), allowable costs “shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” Subdivision (3) requires: “Allowable costs shall be reasonable in amount.” “Items not mentioned in [Section 1033.5] and items assessed upon application may be allowed or denied in the court’s discretion.” (Code Civ. Proc., § 1033.5, subd. (c)(4).) There is no requirement that copies of bills, invoices, statements, or any other such documents be attached to the memorandum. Only if the costs have been put in issue via a motion to tax costs must supporting documentation be submitted. (*Bach v. County of Butte* (1989) 215 Cal.App.3d 294, 308.)

On a motion to tax costs, “[i]f the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. However, because the right to costs is governed strictly by statute a court has no discretion to award costs not statutorily authorized.” (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774, internal citations omitted.) “The court’s first determination, therefore, is whether the statute expressly allows the item, and whether it appears proper on its face. If so, the burden is on the objecting party to show them to be unnecessary or unreasonable.” (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131, internal citations omitted.) The objecting party does not meet this burden by arguing that the costs were not necessary or reasonable but must present evidence and prove that the costs are not recoverable. (*Litt v. Eisenhower Med. Ctr.* (2015) 237 Cal.App.4th 1217, 1224; *Seeever v. Copley Press, Inc.* (2006) 141 Cal.App.4th 1550, 1557.)

Rule of Court

3.1700 states, “A prevailing party who claims costs must serve and file a

memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first.”

III.

DISCUSSION

Moshe seeks to strike and/or tax Tyron's Costs Memorandum filed and served on

December 19, 2025.

A. Prevailing Party

As stated above, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. (Code Civ. Proc., § 1032(b).) A prevailing party includes “the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant.” (Id. § 1032(a)(4).) “[T]he trial court has no discretion to deny prevailing party status to a litigant who falls within one of the four statutory categories in the first [sentence] of the provision. ‘As rewritten [in 1986], section 1032 now declares that costs are available as “a matter of right” when the prevailing party is within one of the four categories designated by statute.’ ” [Citations.]” (Charton v. Harkey (2016) 247 Cal.App.4th 730, 738.)

There is no dispute that Tyron is the prevailing party. Here, the Court granted summary adjudication in favor of Tryon as to Tryon's first, third, and fourth causes of action.[1]

The Court subsequently entered judgment, stating that Tyron's Deed of Trust, “recorded as Document Number 20230141782 in the Official Records of Los Angeles County on March 7, 2023, is hereby equitably subrogated to the lien priority positions against the parcels of real property commonly known as 1303-1305 Laveta Terrace, Los Angeles, California 90026 that were previously held by the Deeds of Trust in favor of Easy Financial LLC.” Given that this is considered

nonmonetary relief, the second sentence of section 1032(a)(4) controls and “the ‘prevailing party’ shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not[.]” (Code Civ. Proc., § 1032(a)(4).) In these situations, “the trial court in its discretion determines the prevailing party, comparing the relief sought with that obtained, along with the parties’ litigation objectives as disclosed by their pleadings, briefs, and other such sources.” (On-Line Power, Inc. v. Mazur (2007) 149 Cal.App.4th 1079, 1087.) The judgment explicitly stated that Tyron “is entitled to recover its costs of suit from” Moshe.

B.

Reasonableness of Costs

“All costs awarded to a prevailing party must be (1) incurred by that party, whether or not paid; (2) ‘reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation’; and (3) reasonable in amount.” (Charton, supra, 247 Cal.App.4th at p. 739; Code Civ. Proc., § 1033.5(c)(1)-(3).) “[I]tems on a verified cost bill are prima facie evidence the costs, expenses and services listed were necessarily incurred, and when they are properly challenged the burden of proof shifts to the party claiming them as costs.” (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) “[T]he burden is upon the moving party to establish the illegality of the challenged items; otherwise the amount demanded in the verified cost bill is controlling.” (Wilson v. Nichols (1942) 55 Cal.App.2d 678, 682-83.)

“In

ruling upon a motion to tax costs, the trial court’s first determination is whether the statute expressly allows the particular item and whether it appears proper on its face. ‘If so, the burden is on the objecting party to show [the costs] to be unnecessary or unreasonable.’ [Citation.] Where costs are not expressly allowed by the statute, the burden is on the party claiming the costs to show that the charges were reasonable and necessary.” (Foothill-De Anza Community College Dist. v. Emerich (2007) 158 Cal.App.4th 11, 29.)

i.

Filing and Motion Fees

Tyron

seeks \$1,115.00 in filing and motion fees.

Moshe

seeks to tax \$60.00 for a motion to compel and \$60.00 for an ex parte application for reconsideration on the grounds that the motion to compel was withdrawn after filing and the ex parte application was denied. However, there is precedent for the recovery of fees for an unsuccessful motion, or even a withdrawn motion. (See *City of Sacramento v. Drew* (1989) 207 Cal.App.3d 1287, 1303 ["Litigation often involves a succession of attacks upon an opponent's case; indeed, the final ground of resolution may only become clear after a series of unsuccessful attacks. Compensation is ordinarily warranted even for unsuccessful forays."]; *Parker v. State of California* (2013) 164 Cal.Rptr.3d 345, 372 ["A withdrawn motion is analogous to an unsuccessful motion . . . There is precedent for the recovery of fees for an unsuccessful motion."].)

Moshe also seeks to tax \$435.00 for filing the summons and complaint on the ground that these costs "were paid for the summons and complaint against a total of three defendants." This is not reflected in the Costs Memorandum, and because such costs are expressly permitted by statute, Moshe has the burden of demonstrating that such costs were unreasonable or unnecessary. (Code Civ. Proc., § 1033.5(a)(1).) He has failed to do so. (See *Duran v. St. Luke's Hosp.* (2003) 114 Cal.App.4th 457, 459 ["it is mandatory for court clerks to demand and receive the fee required by statute before documents or pleadings are filed"].)

The Court does not tax Tyron's filing and motion fees.

ii.

Deposition Costs

Next, Tyron seeks

\$792.50 in taking the deposition of Moshe. Moshe's main contention

is

that taking Moshe's deposition made "little sense" and no portion of the deposition transcript was introduced alongside Tyron's motion for summary adjudication. However, the fact that Tyron ultimately did not use Moshe's deposition testimony in its motion for summary adjudication does not translate to the cost being unreasonable or unnecessary. In fact, taking Moshe's deposition was reasonable or necessary to the conduct of the litigation as Tyron was entitled to take the

deposition of a party in the case to gain further information that may or may not be useful to Tyron's claims. (See Code Civ. Proc., § 2025.010; *Chaaban v. Wet Seal, Inc.* (2012) 203 Cal.App.4th 49, 57 ["The recovery of deposition costs does not depend on whether the deponent ultimately testifies at trial."].)

The Court does not tax Tyron's deposition costs. (Code Civ. Proc., § 1033.5(a)(3).)

iii.

Service of Process

Tyron seeks \$1,933.50 for service of process costs, which consists of \$401.00 for serving

Provident, \$591.00 for serving Moshe (1st attempt), \$391.00 for serving Moshe (2nd attempt), \$285.50 for serving Reposition (1st attempt) and \$265.00 for serving Reposition (2nd attempt).

While this is an expressly allowable cost pursuant to section 1033.5(a)(4), Moshe's counsel provides that he "routinely use[s] process servers, and unless the service is very complicated, the normal rate is about \$110.00 per serve and can actually be below \$100.00." (Reich Decl., ¶ 5.) He contends that this case did not present difficult service issues, and "the market rate may be as low as \$65.00 and as high as \$150.00, which is the top." (Ibid.) Thus, Moshe has squarely put the service of process costs at issue, and the burden then shifts to Tyron to provide further documentation or evidence to demonstrate the breakdown and overall reasonableness of these costs. (See *Wagner Farms, Inc. v. Modesto Irrigation Dist.* (2006) 145 Cal.App.4th 765, 774 ["However, where the items are properly objected to, they are put in issue, and the burden of proof is upon the party claiming them as costs."]; *Bach v. Cnty. of Butte* (1989) 215 Cal.App.3d 294, 308 ["Documentation must be submitted only when a party dissatisfied with the costs claimed in the memorandum challenges them by filing a motion to tax costs."].) Tyron has failed to satisfy its burden as no opposition was filed.

The Court taxes Tyron's service of process costs.

iv.

Court-Ordered
Transcript

Tyron seeks \$205.50
for the transcript of the April 2, 2025 hearing on a motion to

compel.

There is no record that the Court ordered the transcript of this hearing. This
is expressly not an allowable cost. (See Code Civ. Proc., § 1033.5(a)(16)(5).)

The Court taxes Tyron's cost for a
court-ordered transcript.

v.

Interpreter Fee

Tyron seeks
\$1,350.00 for interpreter fees. While this is an expressly allowable cost

pursuant

to section 1033.5(a)(3)(B), Moshe's counsel provides that a Hebrew interpreter
was only used for Moshe's deposition, which last two hours and twenty-four
minutes. (Reich Decl., ¶ 7.) He further declares that he is familiar with using
Hebrew interpreters because he often litigates cases wherein at least one party
is a Hebrew speaker, and the rate for such interpreter is around \$125.00 an
hour. Thus, Moshe has squarely
put the interpreter cost at issue, and the burden then shifts to Tyron to
provide further documentation or evidence to demonstrate the breakdown and
overall reasonableness of these costs. Tyron has failed to satisfy its burden
as no opposition was filed.

The
Court taxes Tyron's interpreter costs.

vi.

E-Filing
Costs

Tyron seeks \$1,388.50 for e-filing

costs, and has provided the incurred cost for each

Filing in its Costs Memorandum.

Similarly as stated above, this is an expressly allowable cost pursuant to section 1033.5(a)(14). However, Moshe's counsel provides that the e-filing costs claimed are excessive because based on his 32 years of experience, "the market rate for each e-filing (regardless of the number of documents in that e-filing) is about \$18.00 per filing. (The charge which the e file services charge is per filing, not per document.)" (Reich Decl., ¶ 2, Ex. A [Moshe's counsel invoice for e-filing of one documents filed recently in this case].) Thus, Moshe has squarely put the e-filing costs at issue, and the burden then shifts to Tyron to provide further documentation or evidence to demonstrate the overall reasonableness of these costs. Tyron has failed to satisfy its burden as no opposition was filed.

The

Court taxes Tyron's e-filing costs.

vii.

Other

Costs

Tyron seeks \$3,967.76, which consists
of delivered letters, delivered motions and ex

parte applications, and recorders fees. None
of these costs seem to be expressly allowed by section 1033.5. (See Foothill-De Anza Community College Dist., supra, 158 Cal.App.4th at p. 30 ["Costs for courier or messenger fees are not specifically enumerated as allowable costs in Code of Civil Procedure section 1033.5, subdivision (a), neither are they prohibited in subdivision (b). Thus, messenger fees may be recoverable in the trial court's discretion if "reasonably necessary to the conduct of the litigation."].) The burden thus was on Tyron to demonstrate that these costs were reasonably incurred. Tyron failed to satisfy this burden as no opposition was filed.

The

Court taxes Tyron's other costs.

IV.

CONCLUSION

Based on the foregoing, Moshe's Motion to Tax

Costs is GRANTED in the reduced amount of \$8,845.26. Tyron is entitled to recover its costs associated with filing and motion fees and deposition costs.

Dated this 10th
day of September 2026

Hon. Gary D.
Roberts

Judge of the
Superior Court